

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #02	CCRB Case #: 201701698	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/03/2017 5:35 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/3/2018	Precinct: 88		
Date/Time CV Reported Fri, 03/03/2017 8:30 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/03/2017 8:30 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jalal Ali	10928	960147	PSA 3
2. POM Ronit Vyas	02062	960061	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sujit Nair	19088	951493	PSA 3
2. POM Justin Beiger	18257	951536	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . POM Ronit Vyas	Abuse: Police Officer Ronit Vyas threatened to arrest § 87(2)(b)	A . Substantiated
B . POM Jalal Ali	Abuse: Police Officer Jalal Ali threatened to arrest § 87(2)(b)	B . Substantiated
C . POM Ronit Vyas	Abuse: Police Officer Ronit Vyas threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Jalal Ali	Discourtesy: Police Officer Jalal Ali spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Jalal Ali	Abuse: Police Officer Jalal Ali refused to provide his name and shield number to § 87(2)(b)	E . Substantiated
F . POM Jalal Ali	Abuse: Police Officer Jalal Ali interfered with § 87(2)(b)'s use of a recording device.	F . Unsubstantiated

Case Summary

On March 3, 2017, § 87(2)(b) filed this complaint via the CCRB website. On the same day, he filed a complaint regarding the same incident with the Internal Affairs Bureau (IAB), who subsequently referred it to the CCRB via log #2017-8201. This case is being closed over 90 days after it was received because the witness officers were not immediately identifiable and because of the extensive process to coordinate with FDNY to interview the EMTs who were present for part of the incident.

At approximately 5:35 p.m. on March 3, 2017, one of § 87(2)(b) brothers, § 87(2)(b) called 911 and reported that his other brother, § 87(2)(b), was doing drugs in the bathroom in their apartment. Shortly thereafter, § 87(2)(b) was sitting in his room in his family's home at § 87(2)(b) in Brooklyn, when he heard several people enter the apartment and heard § 87(2)(b) yell, "Don't touch me." He walked out of his room and observed Police Officer Jalal Ali and Police Officer Ronit Vyas of PSA-3 standing in front of the bathroom adjacent to his room. The officers were attempting to speak to § 87(2)(b) and to get him off of the toilet. § 87(2)(b) told the officers not to touch § 87(2)(b). Police Officers Ali and Vyas both told § 87(2)(b) that they were going to "lock [him] up" (**Allegations A and B**). Police Officer Vyas allegedly told § 87(2)(b) that he was going to "knock [him] out" (**Allegation C**). § 87(2)(b) called 911 to complain, and Police Officer Ali allegedly called § 87(2)(b) either "idiot," "stupid," or "dumbass" (**Allegation D**). § 87(2)(b) then began to record Police Officer Ali with his cell phone. He requested Police Officer Ali's name and shield number, and Police Officer Ali replied, "I don't have to tell you. You see it alright?" (**Allegation E**). § 87(2)(b) moved his camera toward Police Officer Ali in an attempt to capture his name and shield number. Police Officer Ali pushed § 87(2)(b) away from him and told him that he had come "too close" (**Allegation F**). Police Officer Vyas brought § 87(2)(b) into the living room. Police Officers Sujit Nair and Justin Beiger of PSA-3 arrived at the apartment and requested EMS assistance. Police Officer Ali allegedly introduced § 87(2)(b) to Police Officers Nair and Beiger as the "asshole of the family" (**within Allegation D**). EMTs § 87(2)(b) and § 87(2)(b) arrived on scene and left when § 87(2)(b) refused medical attention. No summonses were issued and no arrests were made.

Cell phone camera footage was recorded by § 87(2)(b) during the incident and was obtained from him via email on March 9, 2017. This video showed the portions of the incident in which he requested Police Officer Ali's name and shield, and in which Police Officer Ali pushed him away (embedded below). The video is in IA #10 (Board Review 01).



201701698_20170309_1401_DM.MOV

Mediation, Civil and Criminal Histories

- § 87(2)(b) was presented with and refused mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As per the New York City Comptroller's Office, no Notice of Claim has been filed in regards to this incident as of June 29, 2017 (Board Review 04).

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) (Board Review 05).
- Police Officer Ali has been a member of the NYPD for one year and has no previous CCRB allegations.
- Police Officer Vyas has been a member of the NYPD for one year and has no previous CCRB allegations.

Potential Issues

- § 87(2)(b) and § 87(2)(b) needed a Cantonese interpreter in order to provide their respective statements to the CCRB.
- § 87(2)(b) scheduled and missed two interview appointments and did not provide an in-person statement.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A – Abuse of Authority: Police Officer Ronit Vyas threatened to arrest § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Jalal Ali threatened to arrest § 87(2)(b)

On March 3, 2017, § 87(2)(b) filed this complaint online via the CCRB website (Board Review 08) and provided a telephone statement to IAB (Board Review 13). § 87(2)(b) provided a telephone statement to the CCRB on March 9, 2017 (Board Review 06), and was interviewed at the CCRB on March 10, 2017. § 87(2)(b) provided a telephone statement on March 9, 2017 (Board Review 07). Police Officer Ali was interviewed at the CCRB on April 11, 2017. Police Officer Vyas was interviewed at the CCRB on April 25, 2017. Police Officers Nair and Beiger were interviewed at the CCRB on May 2, 2017. EMTs § 87(2)(b) and § 87(2)(b) provided telephone statements on May 25, 2017 (Board Review 09) (Board Review 10). § 87(2)(b) provided a telephone statement on June 30, 2017, and a follow-up statement on July 5, 2017 (Board Review 11) (Board Review 12).

The general contours of this incident are not in dispute. It is undisputed that at 5:34 p.m. on March 3, 2017, § 87(2)(b) called 911 and stated that his brother was “doing drugs in the bathroom.” Police Officers Ali and Vyas arrived at approximately 5:52 p.m. and were led into the apartment by § 87(2)(b) who repeated that his brother was doing drugs in the bathroom. The officers walked to the bathroom and observed § 87(2)(b) sitting on the toilet with his pants down. Police Officer Ali instructed § 87(2)(b) to get off of the toilet and out of the bathroom. When he did not, Police Officer Ali made physical contact with § 87(2)(b). § 87(2)(b) walked from his bedroom to the bathroom and told Police Officer Ali not to touch § 87(2)(b). Police Officers Ali and Vyas told § 87(2)(b) that he could be “locked up.” § 87(2)(b) walked back to his room and called 911. He walked back out of his room and requested Police Officer Ali’s name and shield number. He walked close while recording with his cell phone to Police Officer Ali, who pushed him away and told him that he came too close to him. After the video recording stopped, Police Officer Vyas walked § 87(2)(b) from the bathroom and into the living room. Police Officers Nair and Beiger arrived shortly thereafter, followed by EMTs § 87(2)(b) and § 87(2)(b). § 87(2)(b) refused medical attention and was not arrested. Police Officer Ali completed a Domestic Incident Report (Board Review 20) and the officers left without further incident.

§ 87(2)(g)

§ 87(2)(b) stated that he told the officers not to touch § 87(2)(b) and that in response Police Officer Vyas stated that he was going to “lock § 87(2)(b) up.” Then Police Officer Vyas said, “I’m-a knock you out.” § 87(2)(b) walked back into his room and began to speak with Police Officer Ali, who also said that he was going to “lock § 87(2)(b) up.” He called 911 and during this time Police Officer Ali laughed at him and called him either “idiot,” “stupid,” or “dumbass.” Then § 87(2)(b) began to record the officers with his cell phone. Police Officer Ali asked whether he wanted to see his badge. § 87(2)(b) replied, “Yeah.” § 87(2)(b) walked toward Police Officer Ali with his cell phone camera. Police Officer Ali pushed him away in response. § 87(2)(b) was unable to record Police Officer Ali’s name and shield number. § 87(2)(b) was taken to the living room and Police Officers Nair and Beiger and an EMT responded to the location. Police Officers Nair and Beiger asked him what had happened, and § 87(2)(b) recounted his version of the incident. During this time, Police Officer Ali introduced § 87(2)(b) to the other officers as “the asshole of the family.” Police Officer Nair told § 87(2)(b) about the CCRB and provided him with Police Officer Ali’s name.

In regards to the allegations that officers threatened § 87(2)(b) with arrest; Police Officer Ali stated that § 87(2)(b) stood “too close” to Police Officer Vyas when Police Officer Ali was in the bathroom with § 87(2)(b). Police Officer Vyas pushed § 87(2)(b) backwards one time. Police Officer Ali believed that § 87(2)(b) could have been arrested for obstruction of governmental administration and repeatedly told him “if you keep on interfering you will be arrested,” or “locked up.” By ‘interfering’ Police Officer Ali meant that § 87(2)(b) was coming “too close” to

the officers, who “didn’t know what he was going to do.” He did not recall whether his partner also told § 87(2)(b) that he could “get locked up” as well.

Police Officer Vyas described § 87(2)(b) as “obstructing” by standing behind him and saying, “Leave him alone. He has a mental disorder.” He stated that § 87(2)(b) did not do anything that he would have arrested him for. When asked specifically whether § 87(2)(b) did anything that he could have been arrested for, Police Officer Vyas replied that § 87(2)(b) was stopping the officers from doing their job speaking to them while they were speaking to § 87(2)(b) and § 87(2)(b) and that his behavior was “obstruction of government.” He did not recall whether he told § 87(2)(b) that he could be arrested.

Police Officer Ali and Police Officer Vyas’ memo books reflected that § 87(2)(b) was “interfering with officer duty by coming in between officers and § 87(2)(b) after multiple commands to stay away” (Board Review 14).

§ 87(2)(b) denied hearing the officers speak with any of his family members, although § 87(2)(b) can be clearly heard speaking to Police Officer Ali immediately in front of the bathroom where § 87(2)(b) sat. Additionally, § 87(2)(b) was allegedly under the influence of drugs and the investigation did not uncover any evidence to the contrary. § 87(2)(g)

§ 87(2)(b) stated that he did not observe any of the allegations against Police Officers Ali and Vyas, including those allegations that the officers acknowledged and were captured on § 87(2)(b)’s video recording. § 87(2)(g)

Police Officer Ali stated that he threatened to arrest § 87(2)(b) because he was committing “OGA.” His memo book reflected that § 87(2)(b) stood between the officers and § 87(2)(b). However, at the CCRB he stated that § 87(2)(b) only walked “too close” to the officers as they were attempting to get § 87(2)(b) out of the bathroom. § 87(2)(g)

Police Officer Vyas did not recall whether he informed § 87(2)(b) that he could be arrested. He, however, stated that § 87(2)(b) was “obstructing” them because he was telling the officers to leave his brother alone while they were dealing with § 87(2)(b). § 87(2)(g)

A person is guilty of obstruction of governmental administration when he intentionally obstructs, impairs or prevents or attempts to prevent a public servant from performing an official function,

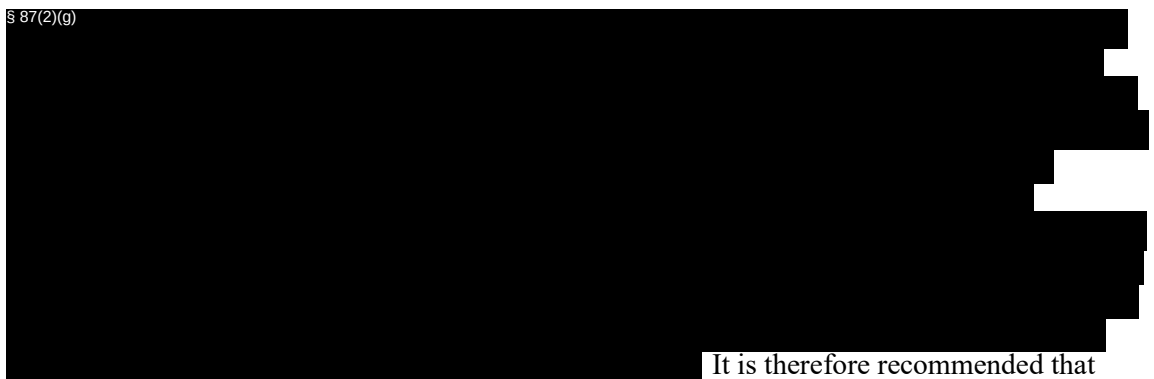
be means of intimidation, physical force or interference, or by means of any independently unlawful act. New York State Penal Law §195.05. (Board Review 17).

In People v. Arvio the court established three elements of obstruction of governmental administration; (1) intent; (2) obstruction, impairment or perversion of the administration of law or governmental function, or preventing or attempting to prevent the performance of that function, by; (3) intimidation, physical force or interference or by an independently unlawful act. People v. Arvio, 321 N.Y.S.2d 382; (1971) (Board Review 15). In Uzoukwu v. City of New York the court ruled that “mere words alone” did not constitute physical force or interference such as to support the charge of obstructing governmental administration. Uzoukwu v. City of New York, 805 F.3d 409; (2015) (Board Review 16). In People v. Yarborough the court ruled that the defendant was properly charged with obstruction of governmental administration because he “came between” a police officer and individuals who the officer was investigating, screamed at the officer, and refused the officer’s repeated requests to move. The court ruled that this “interrelated conduct” clearly established his intent to “frustrate and obstruct” an official function. People v. Yarborough, 852 N.Y.S.2d 751; (2008) (Board Review 19).

§ 87(2)(g)



§ 87(2)(g)



It is therefore recommended that

Allegations A and B be Substantiated.

Allegation C – Abuse of Authority: Police Officer Ronit Vyas threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that when he first asked that the officers not touch his brother (and only he, § 87(2)(b), and the officers were present), Police Officer Vyas stated that he was going to “knock [Mr. § 87(2)(b)] out.” Police Officer Vyas denied making this statement or threatening to use any

force against § 87(2)(b) Police Officer Ali did not recall whether he heard Police Officer Vyas make this statement.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **Unsubstantiated**.

Allegation D – Abuse of Authority: Police Officer Jalal Ali spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Police Officer Ali called him either “idiot,” “stupid,” or “dumbass,” when he first called 911, and then introduced him as the “asshole of the family” to Police Officers Nair and Beiger.

Police Officer Ali stated that he did not recall whether he called § 87(2)(b) “an idiot,” “stupid,” or told other officers that he was the “asshole of the family.”

Police Officer Vyas, Police Officer Beiger, and Police Officer Nair all stated that they did not recall hearing Police Officer Ali call § 87(2)(b) “an idiot,” “stupid,” or the “asshole of the family.”

These alleged discourtesies occurred prior to § 87(2)(b) beginning his video recording. However, during the recorded portion Police Officer Ali is seen and heard saying to § 87(2)(b) seemingly sarcastically, “smart man, you’re a very smart man” (see 201701698_20170309_1401_DM.MOV, embedded above at the 0:59 mark).

According to Patrol Guide 203-09, members of service must be discourteous and respectful (Board Review 18).

§ 87(2)(g)

Therefore, it is recommended that

Allegation D be **Substantiated**.

Allegation E – Abuse of Authority: Police Officer Jalal Ali refused to provide his name and shield number to § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Jalal Ali interfered with § 87(2)(b) use of a recording device.

In regards to the allegations that Police Officer Ali refused to provide his name and shield and interfered with § 87(2)(b) use of a recording device; Police Officer Ali stated that before § 87(2)(b) began recording, he requested Police Officer Ali’s name and shield number, and that in response he verbally provided both his name and shield number two times. Police Officer Ali was asked whether § 87(2)(b) was trying to record anything in particular, and he replied, “I don’t know what he was trying to record.” He did not know what § 87(2)(b) said while he was

recording. He was asked whether § 87(2)(b) was specifically attempting to record his name and shield. He replied, “No. It didn’t seem... I told him multiple times before he was recording.” Police Officer Vyas did not recall § 87(2)(b) requesting Police Officer Ali’s name and shield number. Police Officer Nair stated that no one requested an officer’s name and shield number in his presence. Police Officer Beiger stated that he did not see Police Officer Ali refuse to provide his name and shield number to § 87(2)(b).

The video footage § 87(2)(b) provided to the CCRB showed part of his interaction with Police Officers Ali and Vyas (Board Review 01). In the relevant portion of the recording, § 87(2)(b) is heard saying, “Where is your nametag?” He walks toward Police Officer Ali, who replies, “I don’t have to tell you. You see it alright?” The camera appears to be stretched toward Police Officer Ali’s shield. When it briefly reaches a point at which it might have captured information, it is abruptly pushed back. Police Officer Ali repeatedly says, “Don’t get close.” § 87(2)(b) replies, “Why you push me?” Police Officer Ali replies, “Don’t get close. I said don’t get close.” They continue this verbal back and forth. § 87(2)(b) says, “Did I touch you?” Police Officer Ali replies, “You got close to me right? If my hand can reach you...”

As stated above, the video footage shows that § 87(2)(b) requested Police Officer Ali’s name and shield number, at which time Police Officer Ali replied, “I don’t have to tell you that. You see it alright?” When the camera goes toward Police Officer Ali’s shield, Police Officer Ali pushes it away. Police Officer Ali stated that he pushed § 87(2)(b) away from him because he came “too close.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Patrol Guide 203-09 states that an officer must provide his name and shield number when requested by a civilian (Board Review 18).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **Substantiated**.

Therefore, it is recommended that **Allegation F** be
Unsubstantiated.

Squad 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date